Date **21 December 2021**

AGREEMENT FOR THE SHARING OF DATA

between

THE MAYOR AND BURGESSES OF
THE LONDON BOROUGH OF CAMDEN

and

SAFELIVES

and

RESPECT

and

CRANSTOUN

CONTROLLER TO CONTROLLER DATA SHARING AGREEMENT

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This agreement (the "**Agreement**") is made 2020

Parties

(1) **THE MAYOR AND BURGESSES OF THE LONDON BOROUGH OF CAMDEN** of Town Hall, Judd Street, London WC1H 9JE ("the Council"); and

(2) **RESPECT PROJECT**, a registered charitable company with charity registration number 1141636 and company registration number 7582438 and whose registered office is at Hubhub, 20 Farringdon Street, London EC4A 4AB ("Respect")

(3) **CRANSTOUN**, Charity number 1061582, whose registered office is Thames Mews, Portsmouth Road, Esher, Surrey, KT10 9AD

(4) **SAFELIVES** a registered charitable company with charity registration number 1106864 and company registration number 05203237 and whose registered office is at Suite 2a Whitefriars, Lewins Mead, Bristol BS1 2NT

Each referred to as a "Party" and together the "Parties".

BACKGROUND

Restart is a multi-partner project set up with the aims to improve responses to perpetrators of domestic abuse in families that are being supported by Children's Social Care via a co-ordinated multi-agency response. By holding the abusive parent to account for their behaviour, and responsible for making change, this project seeks to:

- Identify and respond to patterns of domestic abuse at an earlier stage for families, improving safety and long-term outcomes for child and adult victims
- Build motivation and facilitate access to behaviour change interventions for the abusive parent
- Where required, facilitate access to alternative accommodation for the abusive parent ensuring that child and adult victim-survivors remain safe at home with space for action
- Reduce repeat and serial incidents of domestic abuse in the same, or in future, relationships
- Prevent escalation and the risk of adult and child victim-survivors being the ones needing to move/flee to safer accommodation
- Provide training and capacity building for CSC practitioners to enable CSC to effectively hold abusive parents to account
- Shift thinking and approaches in relation to the prevention of family homelessness by working with Housing teams on accommodation pathways

SafeLives is acting as Lead partner on Restart, which has been successful in securing grant funding from the Home Office with match funding from MOPAC in order to fund the activities and work of all partners involved in the project.

The other Restart partners, which have been commissioned to deliver this pilot are: Respect, Cranstoun and Standing Together Against Domestic Abuse (presenting Domestic Abuse Housing Alliance). They will be providing services across the London boroughs of Camden, Croydon, Sutton, Havering and Westminster, in order to achieve the aims of the project.

1. INTERPRETATION

Definitions

"**Agreed Purpose**s" shall mean the agreed purposes for sharing the Personal Data, as detailed in the Schedule;

"**Controller**" shall have the same meaning as set out in the DPA 2018/GDPR and for the purposes of this Agreement both Parties shall be Controllers as further detailed in the Schedule of Processing, Personal Data and Data Subjects;

"Data Discloser" shall mean the Party that discloses data to the other Party to this Agreement;

"Data Loss Event" shall mean any event that results, or may result, in unauthorised access to Personal Data held by the Contractor under this Agreement, and/or actual or potential loss and/or destruction of Personal Data in breach of this Agreement, including any Personal Data Breach;

"DPA 2018" shall mean the Data Protection Act 2018;

"Data Protection Impact Assessment" shall mean an assessment by the Controller of the impact of the envisaged processing on the protection of Personal Data;

"Data Protection Legislation" shall mean:

(i) the DPA 2018/GDPR, the LED and any applicable national implementing Law as amended from time to time
(ii) the DPA 2018 to the extent that it relates to processing of personal data and privacy;
(iii) all applicable Law about the processing of personal data and privacy

"Data Protection Officer" shall have the same meaning as set out in the DPA 2018/GDPR and for the purposes of this Agreement shall be identified in the Schedule of Processing, Personal Data and Data Subjects;

"Data Subject" shall have the same meaning as set out in the DPA 2018/GDPR and for the purposes of this Agreement shall be identified in the Schedule of Processing, Personal Data and Data Subjects;

"Data Subject Access Request" shall mean a request made by, or on behalf of, a Data Subject in accordance with rights granted pursuant to the Data Protection Legislation to access their Personal Data;

"DPA 2018" Data Protection Act 2018

"GDPR" shall mean the General Data Protection Regulation (Regulation (EU) 2016/679);

"ICO" shall mean the Information Commissioner's Office in the United Kingdom;

"Law" shall mean any law, subordinate legislation within the meaning of Section 21(1) of the Interpretation Act 1978, bye-law, enforceable right within the meaning of Section 2 of the European Communities Act 1972, regulation, order, regulatory policy, mandatory guidance or code of practice, judgment of a relevant court of law, or directives or requirements with which the Contractor is bound to comply;

"LED" shall mean the Law Enforcement Directive (Directive (EU) 2016/680);

"Personal Data" shall have the same meaning as set out in the DPA 2018/GDPR and for the purposes of this Agreement shall be identified in the Schedule;

"Personal Data Breach" shall have the same meaning as set out in the DPA 2018/GDPR and includes but is not limited to the exposure or potential or possible exposure of data including but not limited to Personal Data to any third parties to the Agreement or those who have neither a contractual nor statutory right of access to the data including any circumstances in which such exposure or possible exposure would constitute a breach of the provisions of the Data Protection Legislation;

"**Process**" has the meaning given to it under the Data Protection Legislation and for the purposes of this Agreement, the processing activities taking place are described in the Schedule of Processing, Personal Data and Data Subjects;

"**Processor**" shall have the same meaning as set out in the DPA 2018/GDPR;

"Protective Measures" shall mean the appropriate technical and organisational measures which may include: pseudonymising and encrypting Personal Data, ensuring confidentiality, integrity, availability and resilience of systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the such measures adopted by it;

"Schedule" means the Schedule of Processing, Personal Data and Data Subjects;

"Staff" shall mean all directors, officers, employees, agents, consultants and contractors of the Contractor and/or of any Sub-processor engaged in the performance of its obligations under this Agreement;

"Sub-processor" shall mean any third party appointed to process Personal Data on behalf of the Contractor related to this Agreement.

"Term" shall mean the duration of this Agreement as detailed in the Schedule.

2. PURPOSE

2.1 This Agreement sets out the framework for the sharing of **Personal Data** between the Parties as **Data Controllers** and defines the principles and procedures that the Parties shall adhere to and the responsibilities the Parties owe to each other.

2.2 The Personal Data subject to this Agreement is listed within the Schedule.

2.3 The sharing of Personal Data is necessary to support the Agreed Purposes as listed within the Schedule.

2.4 It is recognised that there are significant benefits to the Parties of having access to the Shared Personal Data to achieve the Agreed Purposes.

2.5 This Agreement is required to ensure that where Personal Data may be accessed, such access will at all times comply with the Data Protection Legislation.

3. COMPLIANCE

3.1 The Parties agree that this Agreement formalises the lawful transfer of the Personal Data between the Parties and presents no new or additional privacy concerns.

3.2 A risk assessment has been conducted in respect of the Personal Data to be shared and the necessity of the sharing and this Agreement serves to address any residual privacy or information risks and documents the actions taken to identify, address and mitigate those risks wherever possible.

3.3 The Parties shall not process the Personal Data in a way that is incompatible with the Agreed Purposes.

3.4 As Data Controllers, the Parties remain responsible for ensuring that all uses of the Personal Data are in compliance with all applicable Data Protection Legislation.

3.5 This Agreement must be formally approved and signed by the Parties before any Personal Data is shared by persons with authority to do so on behalf of their organisation. All Parties will ensure that the terms of this Agreement are known and understood by all Staff involved in the sharing of the Personal Data.

3.6 Each Party is registered with the ICO has a valid Data Protection Registration Number with its national Data Protection Authority if required by the Enterprise Act 2017 which by the time that the data sharing is expected to commence, covers the intended data sharing pursuant to this Agreement.

3.7 The Council's ICO registration number is Z5948361 and the Provider's ICO

registration numbers are: Z5064612 (Cranstoun) xxx (Safelives) Z2719216 (Respect) ZA059045.

4. PERSONAL DATA

4.1 The Parties shall, in relation to any of the Personal Data processed in connection with its obligations under this Agreement:

4.1.1 Process that Personal Data only in accordance with the Schedule, unless the Parties are required to do otherwise by Law, which should be notified to the other Parties (unless notification is prohibited by Law);

4.1.2 not Process in an irrelevant or excessive way with regard to the Agreed Purposes;

4.1.3 ensure they do not knowingly or negligently do or omit to do anything which places the Parties breach of the obligations under the Data Protection Legislation;

4.1.4 ensure that they have in place Protective Measures to protect against:

a) unauthorised or unlawful processing of Personal Data;

b) accidental loss or destruction of, or damage to, Personal Data,

and such measures to be reviewed as appropriate to protect against a Data Loss Event having taken account of the:

(i) nature of the data to be protected;

(ii) harm that might result from a Data Loss Event;

(iii) state of technological development; and

(iv) cost of implementing any measures;

4.1.5 ensure the Personal Data is kept and stored securely in accordance with Data Protection Legislation;

4.1.6 ensure that:

(i) the Staff do not process Personal Data except in accordance the Schedule;

(ii) each Party takes all reasonable steps to ensure the reliability and integrity of any Staff who have access to the Personal Data and ensure that they:

(A) are aware of and comply with the duties under this Agreement;

(B) are subject to appropriate confidentiality undertakings;

(C) are informed of the confidential nature of the Personal Data and do not publish, disclose or divulge any of the Personal Data to any third party unless permitted by this Agreement; and

(D) have undergone adequate training in the use, care, protection and handling of the Personal Data;

4.1.7 not transfer the Personal Data outside of the UK and EEA unless the prior written consent of all Parties has been obtained and the following conditions are fulfilled:

a) the Parties have provided appropriate safeguards in relation to the transfer (whether in accordance with GDPR Article 46 or LED Article 37);

b) the Data Subject has enforceable rights and effective legal remedies;

c) the Parties outside the UK and EEA comply with the obligations under the Data Protection Legislation by providing an adequate level of protection to any Personal Data that is transferred (or, if it is not so bound, uses its best endeavours to assist the Parties in meeting its obligations under the Data Protection Legislation);

4.1.8 securely destroy or return the Personal Data (and any copies of it) to the Data Discloser upon termination or expiry of this Agreement unless the Parties are required by Law to retain the Personal Data; and

4.1.9 as far as is reasonably practical, anonymise or pseudoanonymise all Personal Data contained in statistics, reports and summaries to minimise the amount of Personal Data shared.

5. FAIR, LAWFUL AND TRANSPARENT PROCESSING

5.1 The Personal Data shall be shared in accordance with the Agreed Purposes on the

basis of the legal grounds as stated in the Schedule.

5.2 The Parties undertake to inform Data Subjects of the purposes for which it will process their Personal Data and provide all of the information that it must provide in accordance with applicable laws, to ensure that the Data Subjects understand how their Personal Data will be processed by the Data Controller.

5.3 The Parties shall, in respect of the Personal Data, ensure that their privacy notices are clear and provide sufficient information to Data Subjects, in order for them to understand:

5.3.1 what Personal Data the Parties are sharing;
5.3.2 the circumstances in which it will be shared;
5.3.3 the purposes for the sharing;
5.3.4 either the identity with whom the Personal Data is shared or a description of the type of organisation that will receive the Personal Data

unless an exemption to the transparency provisions applies.

6. DATA QUALITY

6.1 The Data Discloser shall ensure that the Personal Data is accurate.

6.2 Where either Party becomes aware of inaccuracies in the Personal Data, they will notify the other Party immediately.

7. DATA SUBJECTS' RIGHTS

7.1 Data Subjects have the right to obtain certain information about the processing of their Personal Data through a Subject Access Request. Data Subjects may also request rectification, erasure or blocking of their Personal Data.

7.2 The Parties shall maintain a record of Subject Access Requests, the decisions made and any information that was exchanged. Records must include copies of the request for information, details of the data accessed and shared and where relevant, notes of any meeting, correspondence or phone calls relating to the request, together with relevant dates.

7.3 The Parties agree that the responsibility for complying with a Subject Access Request falls to Party receiving the Subject Access Request in respect of the Personal Data held by that Party.

7.4 The Parties agree to provide reasonable and prompt assistance (within 5 business days of such a request for assistance) at their own expense as is necessary to each other to enable them to comply with Subject Access Requests and to respond to any other queries or complaints from Data Subjects.

8. DATA RETENTION AND DELETION

8.1 The Data Receiver shall not retain or process Personal Data for longer than is necessary to carry out the Agreed Purposes.

8.2 Notwithstanding Clause 8.1, the Parties shall continue to retain the Personal Data in accordance with any internal or statutory retention periods applicable in their organisations and/or industry.

8.3 The Data Receiver shall ensure that any Personal Data is returned to the Data Discloser or destroyed in the following circumstances:

(a) upon termination of the Agreement for whatever reason;
(b) upon expiry of the Term (unless extended further in accordance the terms of this Agreement); and
(c) once processing of the Personal Data is no longer necessary for the Agreed

Purposes.

9. TRANSFERS

9.1 For the purposes of this Clause, transfers of Personal Data shall mean any sharing of the Personal Data by the Data Receiver with a third party, and shall include, but is not limited to, the following:

a) sharing of the Personal Data with any third party;
b) publication of the Personal Data via any medium, including, but not limited to social media, websites, publically available communications.
c) storing Personal Data on servers outside the UK and EEA;
d) subcontracting the processing of Personal Data to data processors located outside the UK and EEA;
e) granting third parties located outside the UK and EEA access rights to the Personal Data.

9.2 The Data Receiver shall not share the Personal Data with a third party without the express written permission of the Data Discloser save as required by law or court order.

9.3 Where Personal Data is to be shared under clause **9.2, t**he Data Receiver shall not disclose or transfer the Personal Data outside the UK and EEA without first ensuring that adequate and equivalent protections will be afforded to the Personal Data.

10. SECURITY AND TRAINING

10.1 The Parties agree to implement appropriate technical and organisational measures to protect the Personal Data in their possession against unauthorised or unlawful processing and against accidental loss, destruction, damage, alteration or disclosure, including but not limited to:

a) ensuring IT equipment, including portable equipment is kept in lockable areas when unattended;
b) not leaving portable equipment containing the Personal Data unattended;
c) ensuring Staff use appropriate secure passwords for logging into systems or databases containing the Personal Data;
d) ensuring that all IT equipment is protected by antivirus software, firewalls, passwords and suitable encryption devices;
e) ensuring that any Special Category Personal Data is stored and transferred (including where stored or transferred on portable devices or removable media) using industry standard 256-bit AES encryption or suitable equivalent;
f) limiting access to relevant databases and systems to those Staff who need to have access to the Personal Data, and ensuring that passwords are changed and updated regularly to prevent inappropriate access when individuals are no longer engaged by the Party;
g) conducting regular threat assessment or penetration testing on systems;
h) ensuring all Staff handling Personal Data have been made aware of their responsibilities with regards to handling of the Personal Data; and
i) allowing for inspections and assessments to be undertaken by the other Party in respect of the security measures taken, or producing evidence of those measures if requested.

11. PERSONAL DATA BREACHES AND REPORTING PROCEDURES

11.1 The Parties shall ensure they do not knowingly or negligently do or omit to do anything which places either Party in breach of the Data Protection Legislation.

11.2 Each Party shall inform the other immediately if it:

a) is in breach of the Protective Measures requirements;
b) receives a request to rectify, block or erase the Personal Data;
c) receives any complaint or communication relating to either Party's obligations

under the Data Protection Legislation;

d) receives any communication from the Information Commissioner or any other regulatory authority in connection with the Personal Data;
e) receives a request from any third party for disclosure of the Personal Data where compliance with such request is required or purported to be required by Law; or
f) becomes aware of a Data Loss Event, and without undue delay and in any event within 24 hours, shall notify the other Parties, by:
    (i) contacting the Data Protection Officer(s) as detailed within the Schedule; and
    (ii) informing them of the Data Loss Event, including in its notification:
        (A) a description of the Data Loss Event including where possible, the categories and approximate number of Data Subjects concerned and the categories and approximate number of data records concerned; and
        (B) a description of the measures taken or proposes to take to address the Data Loss Event, including, where appropriate, measures to mitigate its possible adverse effects.

11.3 Following the notification of a Data Loss Event, the informing Party shall immediately assess the risks and consequences of the Data Loss Event and take measures, including:
(i) to mitigate the possible adverse effects of the Data Loss Event; and
(ii) to protect the data and the interests/safety of the Data Subject and/or Data Controller,
and inform the other Parties as to the measures that it has taken.

11.4 The informing Party's obligation to notify shall include the provision of further information in phases, as details become available.

12. RESOLUTION OF DISPUTES WITH DATA SUBJECTS OR THE DATA PROTECTION AUTHORITY

12.1 Taking into account the nature of the processing, the Parties shall provide each other, at their own expense, with full assistance in relation to the Personal Data and the obligations under Data Protection Legislation and any complaint, communication or request made including by promptly providing (and in any event within 24 hours of being received):
i. full details and copies of the complaint, communication or request;
ii. such assistance as is reasonably requested to enable the Parties to comply with a Data Subject Access Request within the relevant timescales set out in the Data Protection Legislation;
iii. assistance as required with respect to any request from the Information Commissioner's Office, or any consultation by the Parties with the Information Commissioner's Office;
iv. any Personal Data it holds in relation to a Data Subject (as appropriate) within the timescales required by the Council; and
v. each other Party with any information requested in relation to the request.

13. RECORDS

13.1 The Parties shall maintain complete and accurate records and information to demonstrate its compliance with Data Protection Legislation.

13.2 The Parties may reasonably request information from each to satisfy itself that obligations under the Data Protection Legislation are being met in relation to the Personal Data.

Sub-processing

13.3 Before allowing any Sub-processor to process any Personal Data related to this Agreement, the Parties must:

a) notify the other Parties in writing of the intended Sub-processor and processing;
b) obtain the written consent of the Parties;
c) enter into a written agreement with the Sub-processor which gives effect to the terms set out in this Condition such that they apply to the Sub-processor; and
d) provide the Parties with such information regarding the Sub-processor as the Parties may reasonably require.

13.4 The appointing Party shall remain fully liable for all acts or omissions of any Sub-processor.

14. WARRANTIES

14.1 Each Party warrants and undertakes that it will:
(a) Process the Personal Data in compliance with all applicable laws, enactments, regulations, orders, standards and other similar instruments that apply;
(b) respond to Subject Access Requests in accordance with the terms of this Agreement and in accordance with the DPA 2018/GDPR;
(c) make available upon request to the Data Subjects a copy of this Agreement, unless the Agreement contains confidential information;
(d) respond within a reasonable time and as far as reasonably possible to enquiries from the relevant Data Protection Authority in relation to the Personal Data;
(e) where applicable, maintain registration with all relevant Data Protection Authorities to process the Personal Data for the Agreed Purpose; and
(f) take all appropriate steps to ensure compliance with the security measures set out in Clause 10.

14.2 The Data Discloser shall ensure that the Personal Data is accurate.

14.3 The Parties agree to take account of any guidance issued by the Information Commissioner's Office. The Council may on not less than 30 Working Days' notice to the Parties to amend this Agreement to ensure that it complies with any guidance.

14.4 Each Party shall be responsible for their own costs incurred in complying with this Agreement.

15. TERM AND TERMINATION

15.1 This Agreement shall commence on and shall continue in for the duration detailed in the Schedule.

15.2 The Agreement shall automatically terminate on expiry of the Term unless, following a review of the terms of the Agreement, the Parties agree to extend the Agreement.

15.3 Any such renewal shall be in writing signed by an authorised signatory of all Parties and the Parties shall seek to agree any such renewal at least **2** months in advance of the expiry of the Term.

15.4 The provisions of this Agreement shall apply during the continuance of the Agreement and indefinitely after its expiry or termination.

16. ROLES AND RESPONSIBILITIES

16.1 Each Party shall nominate a single point of contact within their organisation who may be contacted in respect of queries or complaints regarding DPA 2018/GDPR and/or compliance under the terms of this Agreement, as detailed within the Schedule.

17. THIRD PARTY RIGHTS

17.1 No one other than a Party to this Agreement shall have any right to enforce any of its terms.

18. VARIATION

18.1 No variation of this Agreement shall be effective unless it is in writing and signed by the Parties (or their authorised representatives).

19. WAIVER

19.1 No failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict the further exercise of that or any other right or remedy. No single or partial exercise of such right or remedy shall prevent or restrict the further exercise of that or any other right or remedy.

20. SEVERANCE

20.1 If any provision of this Agreement (or part of any provision) is found by any court or other authority of competent jurisdiction to be invalid, illegal or unenforceable, that provision or part-provision shall, to the extent required, be deemed not to form part of this Agreement, and the validity and enforceability of the other provisions of this Agreement shall not be affected.

20.2 If a provision of this Agreement (or part of any provision) is found to be illegal, invalid or unenforceable, the provision shall apply with the minimum modification necessary to make it legal, valid and enforceable.

21 CHANGES TO THE APPLICABLE LAW

21.1 In case the applicable data protection and ancillary laws change in a way that the Agreement is no longer adequate for the purpose of governing lawful data sharing exercises, the Parties agree that they will negotiate in good faith to review the Agreement in light of the new legislation.

22 ENTIRE AGREEMENT

22.1 This Agreement constitutes the entire agreement between the Parties in relation to its subject matter, namely the sharing of data included in Schedule 1 of the Agreement, and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

23 FORCE MAJEURE

23.1 Neither Party shall be in breach of this Agreement nor liable for delay in performing, or failure to perform, any of its obligations under this Agreement if such delay or failure result from events, circumstances or causes beyond its reasonable control. In such circumstances the affected party shall be entitled to a reasonable extension of the time for performing such obligations. If the period of delay or non-performance continues for 3 months, the Party not affected may terminate this Agreement by giving 30 days' written notice to the affected Party.

24 NOTICE

24.1 Any notice required to be given under this Agreement shall be in writing and shall be delivered personally or sent by pre-paid first-class post, recorded delivery or by commercial courier to the other Party as set out in the Schedule.

25 GOVERNING LAW AND JURISDICTION

25.1 This Agreement and any dispute or claim (including non-contractual disputes or

claims) arising out of or in connection with it or its subject matter or formation shall be governed by and construed in accordance with the law of England and Wales.

26 COUNTERPARTS

26.1 This Agreement may be executed in any number of counterparts, each of which when executed and delivered shall constitute a duplicate original, but all the counterparts shall together constitute the one agreement. No counterpart shall be effective until each Party has executed and delivered at least one counterpart.

27 GOOD FAITH

27.1 The Parties shall act and deal in good faith towards each other in respect of all matters the subject of this Agreement.

28 **HUMAN RIGHTS ACT**

28.1 Article 8 of the European Convention on Human Rights states that everyone has the right to respect for his private and family life, home and correspondence and that there shall be no interference by a public authority with that right. In exercising their obligations under this Agreement the parties will at all times comply with the Human Rights Act 1998.

29 CONSIDERATION

29.1 The parties intend this Agreement to be legally binding and the consideration is the mutual obligations of the parties under this Agreement.

This has been entered into on the date stated at the beginning of it.

SIGNED ON BEHALF of)
THE COUNCIL by:)



.....
Executive Director, Supporting People and Deputy Chief Executive

Martin Pratt

.....
Name (block capitals)
22/12/2021

SIGNED ON BEHALF of)
SafeLives by:)



.....
SafeLives Head of Finance and Data Protection Officer
Peter Needham
.....
Name (block capitals)
Date: 21/12/21

SIGNED ON BEHALF of)



.....
Head of Programme and Practice
Rosie Jarvis
.....
Name (block capitals)
Date: 17.12.21

SIGNED ON BEHALF of)
CRANSTOUN by:)



.....
Business Development Manager Domestic Abuse Services
.Maria Cripps.....
Name (block capitals)
Date: 17/12/2021

Schedule

Processing, Personal Data and Data Subjects

1. This Schedule lists the responsibilities and processing of the Parties under this Agreement

2. The Parties shall consider and comply with any further written instructions with respect to the processing by either Party under this Agreement.

3. Any such further instructions shall be incorporated into this Schedule.

Description	Details
Data Protection Officer contact details (for each Party)	***London Borough of Camden*** a) Andrew [redacted] [redacted]0207 974 4444 c) dpo@camden.gov.uk ***Safelives*** a) name: Peter Needham b) number: [redacted] c) email: peter.needham@safelives.org.uk ***Respect*** a) name: [redacted] b) number: c) email: info@respect.uk.net/ [redacted] ***Cranstoun [Data protection lead]*** a) name: Mike Foston b) number: [redacted] c) email*: dataprotection@cranstoun.org.uk*
Subject matter of the processing	For referrals identified by Children's Social Care, the service will deliver: • Consultation with social workers / Children's Social Care Practitioners to develop risk management and intervention plans on cases that have been identified, including those that may not be suitable for the intensive behaviour change intervention • 1:1 assessment and delivery of intensive behaviour change interventions to individuals at risk of perpetrating abuse where consent has been obtained from them and their partner. Where appropriate, this intervention will sit alongside the provision of alternative accommodation for the individual receiving the intervention for up to 4 weeks (although the behaviour change work may extend beyond the 4-week period). • Identification and onward referral of cases where domestic abuse and risk is higher than originally identified, and more intense intervention required.

	In order for the Early Intervention and Accommodation Project to operate efficiently and achieve the outcomes as outlined to prevent abuse and increase family safety, personal information, or data, is required to be shared between authorised partners; much of this data is 'sensitive', or special category data, as classified in Article 9 of the General Data Protection Regulation (GDPR).
Duration of the processing (for each Controller's activities)	1st August 2020 – 31st September 2022
Nature and purposes of the processing	1. **Referral:** Local Authority Social Care practitioners, after identifying a case which fits the early identification risk markers, can refer to The Early intervention Practitioner with as much concise information around the case dynamic. Once completed the referral should be sent via secure email to the Early Intervention Practitioner, who, within 3 working days, will confirm receipt of the referral and advise on timelines for arrangement of the Case Consultation via telephone, or other suitable and secure video conferencing platform. 2. **Case Consultation:** Relevant information on the individual and family referred will be shared between the referring social care practitioner the early intervention practitioner in order to assess the risk of harm to the victim and a risk management and intervention plan to prevent abuse and harm to the victim and family. 3. **Consent from service user and partner:** Relevant personal information can be shared lawfully at the Case Consultation meeting as Domestic Abuse in the household is established and a child or individual is at risk as identified under Section 10 of the Children's Act. However in order to provide a service to the families who are then identified as suitable for the intensive behavioural change intervention (which may include the temporary accommodation provision), and share personal information, consent will be required to be compliant for legitimate interest purposes under section 6 and 9 of GDPR regulations 13. The social care practitioner will gain consent from the potential service user and their partner and obtain signed confidentiality and information sharing agreements from both parties. 4. **Behaviour change intervention and risk management:** Once consent is obtained, the early intervention practitioner will work closely with the individual on 1:1 behaviour change work. Information relevant to assessing risk and behaviour will be recorded and shared with the social care practitioner. The expectation is that the Early Intervention Practitioner and Social Care Practitioner will convene a professionals' meeting a minimum of once per week to discuss updates, share information pertinent to risk, progress and intervention planning, including planning around the safety and wellbeing of the partner and family. Information will be shared via protected electronic files, secure email or telephone and face-to-face meeting. 5. **Data Storage:** Personal data captured for the purposes of case assessment, planning and risk management will be held on Cranstoun's secure case management system (Iizuka), and will be shared only with the Early Intervention Practitioners and Restart project partners and staff member for the purposes of audit, quality assurance and case supervision. 6. **Onward referrals:** Information sharing regarding individuals and families referred into the service will be based on consent, and will occur within local statutory MARAC and MASH information

	sharing and data protection frameworks. If during the intervention (or at any time thereafter) a victim is identified as being at high risk of harm, a referral should be made to the high risk IDVA team as soon as possible, and to MARAC if the client reaches the MARAC threshold. 7. **Evaluation:** Anonymised data will be shared with the evaluator (Social Care Institute for Excellence) for the purposes of learning and evaluation.
Legal Basis for sharing and Privacy notice requirements	Legal basis: Safelives, Respect and Cranstoun • Article 23 GDPR • Article 9(2)(c) GDPR • Common law / GDPR Article 9 • Article 9(2)(d) GDPR • The Care Act 2014 Permitted Purposes: • Prevention and detection of crime and/or the apprehension or prosecution of offenders • To protect vital interests of the data subject; serious harm or matter of life or death • Overriding public interest • Child Protection • Prevention of Abuse and Neglect London Borough of Camden • Article 6(1)(a) GDPR • Article 6(1)(e) GDPR • Article 9(2)(a) GDPR • Article 9(2)(c) GDPR • Article 9(2)(h) GDPR • Article 23 GDPR Permitted purposes • The performance of a task carried out in the public interest or official functions, with a clear basis in law • To protect the vital interests of the data subject or of another natural person where the data subject is physically or legally incapable of giving consent;

	• Preventive or occupational medicine, for the assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care or treatment or the management of health or social care systems and services on the basis of Union or Member State law • Prevention and detection of crime and/or the apprehension or prosecution of offenders
Responsibilities Allocated to each Party	Cranstoun will be the interface for collecting personal information. shared at the point of referral, initial consultation and for the purposes of risk management (which will be shared with Respect and SafeLives). Including: Victim: • Name • DOB • Address • Telephone • Ethnicity • Disability • Sexual orientation • Gender • Relationship status • Pregnancy status & due date Perpetrator: • Name • DOB • Address • Telephone • Ethnicity • Disability • Sexual orientation • Gender • Occupation • Relationship status Children • Name • DOB • Address Data processed by SafeLives, Cranstoun and Respect includes data and information shared and captured throughout the course of the intervention for the purpose of managing risk, intervention planning and outcomes measurement. Including:

	Perpetrator: • Ethnicity • Disability • Sexual orientation • Gender • Occupation • Relationship status
Categories of Data Subject	Both personal, and sensitive personal data will be captured by Cranstoun (and shared with SafeLives and Respect). Information is recorded on: - • victims, • service users • family members and • children Information collected includes identifiable personal information on all parties (in addition to service users) including :- • Names, • Addresses, • NI, NHS and Criminal Record references/URN's and sensitive information including:- • Physical and mental health, • Disabilities, • Criminal activity including offences, records, warnings, cautions and collator information. • Sexuality, • Ethnicity, • Religious beliefs, • Living arrangements Data collected will be directly relevant to assessing risk of domestic abuse to victims and children, formatting risk management and intervention plans for promote victim and child safety and behaviour change work with the service user.
Plan for return and destruction UNLESS requirement under law to preserve data	Data from the participating boroughs will be stored on a Case Management System. At the end of the project the personal data collected will be held for a maximum of 7 years, in line with the SafeLives Date Retention policy. Unless it is required to be held for longer due, for example, the possibility of access for any legal reason by relevant parties